

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Monique West	Team: Squad #02	CCRB Case #: 201700772	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/27/2017 9:00 PM	Location of Incident: § 87(2)(b) PSA 8 stationhouse	18 Mo. SOL 7/27/2018	Precinct: 43		
Date/Time CV Reported Fri, 01/27/2017 10:14 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 01/27/2017 10:14 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Juan Rodriguez	04117	939357	PSA 8

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brendan Rafferty	11738	961139	PSA 8
2. POF Tiffany Scott	09010	961264	PSA 8
3. POM Edwin Martinez	05725	920559	PSA 8
4. POM Hoswaldo Bierd	12359	956436	PSA 8

Officer(s)	Allegation	Investigator Recommendation
A . SGT Juan Rodriguez	Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)	A . Unfounded
B . SGT Juan Rodriguez	Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)	B . Alleged Victim Uncooperative
C . SGT Juan Rodriguez	Abuse: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez refused to provide his shield number to § 87(2)(b)	C . Alleged Victim Uncooperative
D . SGT Juan Rodriguez	Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . SGT Juan Rodriguez	Abuse: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez searched the vehicle in which § 87(2)(b) was an occupant.	E . Exonerated
F . SGT Juan Rodriguez	Force: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez used physical force against § 87(2)(b)	F . Exonerated
G . SGT Juan Rodriguez	Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)	G . Substantiated
H . SGT Juan Rodriguez	Abuse: At the PSA 8 stationhouse, Sergeant Juan Rodriguez searched the vehicle in which § 87(2)(b) was an occupant.	H . Exonerated

Officer(s)	Allegation	Investigator Recommendation
I . SGT Juan Rodriguez	Abuse: At the PSA 8 stationhouse, Sergeant Juan Rodriguez threatened to arrest § 87(2)(b)	I . Exonerated

Case Summary

On January 27, 2017, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board (CCRB) via the Call Processing System. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On January 27, 2017, at approximately 8:45 p.m., Sergeant Juan Rodriguez and Police Officer Tiffany Scott of PSA 8 were conducting routine patrol outside of § 87(2)(b) in the Bronx when Sergeant Rodriguez observed § 87(2)(b)'s brother, § 87(2)(b) who had an open UF-61 Complaint Report for unlawfully fleeing from Sergeant Rodriguez in a motor vehicle during a prior incident on January 19, 2017 (Board Review 14). § 87(2)(b) was arrested. During their interaction, Sergeant Rodriguez allegedly spoke discourteously to § 87(2)(b) (allegation A) and his friend, § 87(2)(b) by repeatedly using the words “fuck,” “fucking,” and “motherfucker.” (allegation B). Sergeant Rodriguez allegedly refused to provide his shield number to § 87(2)(b) (allegation C). § 87(2)(b) her friend, § 87(2)(b) and her son, § 87(2)(b) arrived on scene. When § 87(2)(b) asked Sergeant Rodriguez what was going on, Sergeant Rodriguez allegedly told her to mind her “fucking” business (allegation D). Sergeant Rodriguez allegedly searched § 87(2)(b)'s vehicle, the same vehicle in which § 87(2)(b) had fled from officers previously (allegation E). When § 87(2)(b) confronted him about this, Sergeant Rodriguez allegedly pushed § 87(2)(b) in her stomach (allegation F). Sergeant Rodriguez called § 87(2)(b) a “skinny ass” (allegation G).

Approximately one hour later, § 87(2)(b) went to the PSA 8 stationhouse to obtain information about § 87(2)(b)'s arrest and to file a complaint. Sergeant Rodriguez searched § 87(2)(b)'s vehicle at the stationhouse (allegation H) and threatened to arrest § 87(2)(b) (allegation I).

§ 87(2)(b) was arrested for § 87(2)(b) (Board Review 01).

§ 87(2)(b) a friend of § 87(2)(b) the daughter of § 87(2)(b) captured video footage of a portion of this incident. The full video is embedded below and can be found in IA #14 (Board Review 02).



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Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s arrest, this case was not suitable for mediation.
- As of April 28, 2017, none of the complainants or victims have filed a Notice of Claim with the NYC Comptroller's Office (Board Review 03).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) or § 87(2)(b) (Board Review 05).
- There are two prior CCRB complaints under the name § 87(2)(b) however, without § 87(2)(b)'s date of birth, the investigation was unable to determine whether either of the § 87(2)(b)s in the previous complaints are the same person as the § 87(2)(b) in this case.
- § 87(2)(b) has filed one prior CCRB complaint, which was related to this incident (Board Review 05).
 - § 87(2)(b)
- Sergeant Rodriguez has been a member of the NYPD for 11 years and has had 10 prior allegations against him involving seven cases with no substantiated allegations or recommendations of other misconduct. § 87(2)(g)

Potential Issues

- § 87(2)(b) a victim in this incident, only provided a brief telephone statement. He scheduled and failed to appear to two interview appointments and never contacted the CCRB to reschedule. Therefore, there is no sworn statement from § 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

- Sergeant Rodriguez was the supervisor on scene and acknowledged instructing Police Officer Edwin Martinez of PSA 8 to remove the vehicle from the scene as arrest evidence. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

- § 87(2)(g) [REDACTED]
- § 87(2)(b) [REDACTED]
- § 87(2)(g) [REDACTED]

Allegation A- Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)

On February 6, 2017, § 87(2)(b) was interviewed at the CCRB. On February 13, 2017, § 87(2)(b) provided a phone statement to the CCRB (Board Review 08). On February 14, 2017, § 87(2)(b) and § 87(2)(b) provided phone statements to the CCRB (Board Review 09 and 10). On February 21, 2017, § 87(2)(b) provided a phone statement to the CCRB (Board Review 11). On February 22, 2017, § 87(2)(b) and § 87(2)(b) were interviewed at the CCRB. On February 22, 2017, § 87(2)(b) provided a phone statement to the CCRB (Board Review 12). On February 28, 2017, § 87(2)(b) was interviewed at the CCRB. On March 9, 2017, § 87(2)(b) provided a phone statement to the CCRB (Board Review 13). Police Officer Brendan Rafferty of PSA 8 was interviewed on April 11, 2017. Sergeant Rodriguez was interviewed on April 18, 2017. Police Officer Scott was interviewed on April 26, 2017. Police Officer Martinez and Police Officer Hoswaldo Bierd of PSA 8 were interviewed on May 4, 2017.

§ 87(2)(b) stated that he and his friend, § 87(2)(b) were outside talking when Police Officer Scott approached them and questioned § 87(2)(b) about who he was and whether the vehicle next to him was his. Sergeant Rodriguez then approached and allegedly said, “There you go. I got you now motherfucker.” He also allegedly stated, “I knew I was going to fucking catch you one of these days. That was real fucking funny right?” § 87(2)(b) told him that he ran the first time because he was being aggressive. Sergeant Rodriguez allegedly replied, “Yeah whatever. What’s in the fucking car?” When § 87(2)(b) told him that he was arresting him because he thought he had a warrant, Sergeant Rodriguez allegedly stated, “Yeah you have a fucking warrant.” When § 87(2)(b) asked Sergeant Rodriguez why he was taking his vehicle, Sergeant Rodriguez allegedly stated, “I can take it if I fucking want to.”

During his phone statement, § 87(2)(b) stated that Sergeant Rodriguez said, “There you go. I got you now.” He did not allege that Sergeant Rodriguez made any of the discourteous statements he alleged in his sworn statement.

During his phone statement, § 87(2)(b) only alleged that after Sergeant Rodriguez approached and grabbed § 87(2)(b) he said, “Fuck that” and “I still have your fucking ID.”

All of the other witnesses were not present at the time Sergeant Rodriguez approached § 87(2)(b). None of them made allegations that Sergeant Rodriguez spoke discourteously towards § 87(2)(b) while in their presence.

Sergeant Rodriguez denied using profanity towards § 87(2)(b).

None of the other officers on scene recalled whether Sergeant Rodriguez used profanity towards § 87(2)(b).

§ 87(2)(g)
It is therefore recommended that **allegation A** be **unfounded**.

Allegation B- Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)

Allegation C- Abuse of Authority: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez refused to provide his badge number to § 87(2)(b)

In his phone statement, § 87(2)(b) alleged that when he tried to find out what was going on, Sergeant Rodriguez told him to, “move the fuck back.” § 87(2)(b) alleged that he later asked Sergeant Rodriguez for his shield number to which he responded, “Mind your fucking business.”

§ 87(2)(g)
It is therefore recommended that **allegations B and C** are closed as **victim uncooperative**.

Allegation D– Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that when she saw § 87(2)(b) being arrested and asked Sergeant Rodriguez what the problem was, Sergeant § 87(2)(b) responded, “Mind your fucking business.” § 87(2)(b) stated that § 87(2)(b) and § 87(2)(b) were on scene at that time.

§ 87(2)(b) and § 87(2)(b) corroborated this allegation.

During his phone statement, § 87(2)(b) stated that Sergeant Rodriguez used a “whole lot” of profanity towards § 87(2)(b) however, the only statement he recalled Sergeant Rodriguez make towards her was when he called her a “fucking bitch.”

During his sworn statement, § 87(2)(b) stated that the only time he recalled hearing Sergeant Rodriguez use profanity towards § 87(2)(b) was when he was arguing with § 87(2)(b) however, he did not recall what Sergeant Rodriguez said.

§ 87(2)(b) stated that Sergeant Rodriguez told § 87(2)(b) to “mind her business.”

Sergeant Rodriguez denied saying, “Mind your fucking business” to § 87(2)(b) and none of the other officers who were on scene recalled him making that statement to § 87(2)(b)

§ 87(2)(g)
It is therefore recommended that **allegation D** be **unsubstantiated**.

Allegation E– Abuse of Authority: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez searched the vehicle in which § 87(2)(b) was an occupant.

Allegation H- Abuse of Authority: At the PSA 8 stationhouse, Sergeant Juan Rodriguez searched the vehicle in which § 87(2)(b) was an occupant.

It is undisputed that § 87(2)(b)'s vehicle was removed from the scene by officers and then taken back to the PSA 8 stationhouse where it was searched. All of the victims and witnesses alleged that officers searched § 87(2)(b)'s vehicle at the scene as well.

All of the officers denied any knowledge that the vehicle had been searched at the scene, though they acknowledged that officers entered the vehicle and transported it to the stationhouse after § 87(2)(b) was arrested.

Vouchers for § 87(2)(b)'s property shows that his vehicle was vouchered as arrest evidence (Board Review 06).

Whenever any property comes into the custody of the NYPD an inventory search will be conducted. Patrol Guide Procedure 218-13 (Board Review 07).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **allegations E and H** be **exonerated**.

Allegation F– Force: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez used physical force against § 87(2)(b)

Allegation I– Abuse of Authority: At the PSA 8 stationhouse, Sergeant Juan Rodriguez threatened to arrest § 87(2)(b)

It is undisputed that, while officers were in the process of taking possession of § 87(2)(b)'s vehicle, § 87(2)(b) approached Sergeant Rodriguez, who was standing beside the vehicle, and Sergeant Rodriguez made physical contact with § 87(2)(b) to prevent her from coming close to the vehicle. § 87(2)(g)

§ 87(2)(b) stated that, throughout the incident, while officers were arresting § 87(2)(b) and taking his vehicle, she approached multiple officers and asked them to explain what was going on and what the problem was. At least one officer requested that she stand aside so that the officers could assess the situation. Sergeant Rodriguez responded to § 87(2)(b)'s questions by explaining that her brother was being arrested in regards to a warrant. § 87(2)(b) remained in the vicinity of the officers and continued to question them. When she saw Sergeant Rodriguez looking into § 87(2)(b)'s vehicle, she walked in between Police Officer Martinez and Police Officer Bierd, approached Sergeant Rodriguez, and asked him what right he had to be in § 87(2)(b)'s vehicle and what he was looking for. Sergeant Rodriguez allegedly said, “Get away from me,” and pushed her by her stomach towards the sidewalk. § 87(2)(b) stumbled but did not fall.

In his phone statement, § 87(2)(b) stated that he was walking towards the police vehicle when he heard § 87(2)(b) ask an officer what he was doing in § 87(2)(b)'s car. When § 87(2)(b) turned back, he saw Sergeant Rodriguez and § 87(2)(b) go from the side of the car to the back of the car. He could not see exactly what Sergeant Rodriguez did to her and could not see them once they reached the back of the car.

In his sworn statement, § 87(2)(b) stated that he was in the police vehicle when he saw them go from one side of the car to the other and that from his position; he was unable to witness any physical interaction that occurred between § 87(2)(b) and Sergeant Rodriguez.

§ 87(2)(b) stated that § 87(2)(b) got “close” to Sergeant Rodriguez and asked him what he was doing. Sergeant Rodriguez pushed her in her torso, causing her to stumble

backwards. He did not give her any commands prior to pushing her. His sworn statement was consistent with his phone statement.

§ 87(2)(b) stated that § 87(2)(b) questioned the officers about the search of § 87(2)(b)'s vehicle and Sergeant Rodriguez lightly pushed § 87(2)(b) away. He did not specify which part of § 87(2)(b)'s body Sergeant Rodriguez made contact with.

§ 87(2)(b) stated that § 87(2)(b) walked directly next to Sergeant Rodriguez and asked him why they were searching the vehicle. Sergeant Rodriguez shoved § 87(2)(b) to move her back but she did not recall which part of her body Sergeant Rodriguez made contact with. Sergeant Rodriguez never asked her to stand back or not to come forward. § 87(2)(b) almost fell back from the impact but she caught her balance. Prior to this, Police Officer Martinez and Police Officer Bierd were standing there and making sure that no one got too close.

§ 87(2)(b) stated that § 87(2)(b) walked over to check § 87(2)(b)'s vehicle and that Sergeant Rodriguez shouted something and pushed her in the chest.

§ 87(2)(b) stated that when § 87(2)(b) approached the vehicle to find out what was going on, Sergeant Rodriguez pushed her in her chest, causing her to stumble backwards and that no officers gave her any commands prior to this. § 87(2)(g)

Sergeant Rodriguez stated that after he directed Police Officer Martinez to take § 87(2)(b)'s vehicle, § 87(2)(b) started telling Sergeant Rodriguez that he was not taking the car and walked rapidly towards the driver's side of the vehicle. When she was approximately one foot away from the driver's side door, Sergeant Rodriguez extended his left arm outward to prevent her from entering the vehicle. § 87(2)(b) collided with his arm, causing his arm to touch the upper portion of her body. She did not stumble back or fall.

Police Officer Scott stated that she was in the police vehicle with § 87(2)(b) at this time and did not see anything that happened outside of the vehicle.

Police Officer Martinez § 87(2)(g) walked between him and Police Officer Bierd and approached Sergeant Rodriguez, who was standing near the driver's side door of § 87(2)(b)'s vehicle. He initially stated that Sergeant Rodriguez pushed her backwards and moved her to the sidewalk. He later stated that he believed that Sergeant Rodriguez grabbed her by the arm and told her that she could not come over there and then moved her back to the sidewalk. He later stated that § 87(2)(b) went back to the sidewalk on her own. He eventually stated that he did not recall whether § 87(2)(b) went back to the sidewalk on her own or whether Sergeant Rodriguez moved her or pushed her back there. He did not believe that she lost her balance and did not see him push her in her stomach.

Police Officer Bierd § 87(2)(g) stating that Sergeant Rodriguez outstretched his arm. He did not know whether his arm made physical contact with § 87(2)(b) and he did not see her stumble or fall.

§ 87(2)(b) alleged that when she went to the stationhouse to inquire about the arrest of § 87(2)(b) and to file a complaint against the officers, Sergeant Rodriguez said, "You know I can have you arrested."

§ 87(2)(b) alleged that at the stationhouse Sergeant Rodriguez said to another officer, "Now they want to file complaints. Now we're keeping the fucking car. We're not giving anybody anything. No they can't take none of his property. If she comes back in here, arrest her."

Sergeant Rodriguez acknowledged that he informed § 87(2)(b) that she could have been arrested for obstruction of governmental administration (OGA). He explained during his

interview that by attempting to stop them from taking the vehicle that was going to be impounded as arrest evidence by approaching them to enter the vehicle, § 87(2)(b) had committed OGA.

In all circumstances, any application or use of force must be reasonable under the circumstances. Patrol Guide Procedure 221-01 (Board Review 15). A person is guilty of obstructing governmental administration when he intentionally prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference. Penal Law 195.05 (Board Review 07). Physical interference with police action is required to support an OGA arrest. This requirement does not need to be satisfied by physical force alone. It can be satisfied by the physical encroachment on the work of police officers or by the performance of threatening and distracting movements near officers. Hilderbrandt v. City of New York, 2014 U.S. Dist. LEXIS 128170 (2014) (Board Review 15). In People v. Baltes, the court found that the defendant was guilty of OGA after he repeatedly interrupted officers and came increasingly closer to officers and continued to interfere, despite commands to remain calm and quiet. People v. Baltes, 75 A.D.3d 656 (2010) (Board Review 15).

§ 87(2)(g)
It is therefore recommended that **allegation F** be **exonerated**.

§ 87(2)(g)
It is therefore recommended that **allegation I** be **exonerated**.

Allegation G– Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Juan Rodriguez spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after Sergeant Rodriguez pushed her, § 87(2)(b) told him not to put his hands on his mother. She stated that Sergeant Rodriguez responded, “What are you gonna do about it skinny man?” She did not allege that Sergeant Rodriguez used any profanity during this conversation.

In his phone statement, § 87(2)(b) stated that he did not hear any conversation between § 87(2)(b) and Sergeant Rodriguez.

In his sworn statement, § 87(2)(b) stated that when § 87(2)(b) said to Sergeant Rodriguez, “I swear I wanna punch one of ya’ll,” Sergeant Rodriguez responded, “Fucking try it punk.” He stated that he did not hear Sergeant Rodriguez use any other profanity towards § 87(2)(b).

§ 87(2)(b) did not allege that Sergeant Rodriguez used any profanity towards him or that he referred to him as being “skinny.”

In her phone statement, § 87(2)(b) alleged that Sergeant Rodriguez called § 87(2)(b) a “skinny nigga.”

In her sworn statement, § 87(2)(b) alleged that Sergeant Rodriguez referred to § 87(2)(b) as a “nigga” and used the profanities, “fuck” and “shit” during conversations with him.

Neither § 87(2)(b) nor § 87(2)(b) alleged that Sergeant Rodriguez spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Sergeant Rodriguez said “something like ‘skinny nigger’” to § 87(2)(b)

As seen in video footage (embedded below and located in IA #14), Sergeant Rodriguez approaches the camera and states, “I’m right here. Skinny ass.”



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Members of the service must be courteous and respectful (Patrol Guide Procedure 203-09) and shall address the public using pronouns, titles of respect, and their preferred name (Patrol Guide Procedure 203-10) (Board Review 07).

§ 87(2)(g) It is therefore recommended that **allegation G** be **substantiated**.

Squad: 2

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date